

02:00 PM **LINE 6**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

Motion to be Relieved as Counsel (Bruno Tarabichi)

TENTATIVE RULING:

The unopposed motion of Bruno Tarabichi to be relieved as counsel of record for defendants Rosie Barret and James E. Barrett Corp. is denied without prejudice for lack of proof that all parties received proper notice of the hearing date. The motion was filed and served on March 23, 2026. However, the hearing date on the notice of motion was changed from April 15, 2026 to July 1, 2026 at the time of filing. To date, the court's record does not indicate that an amended notice of motion has been filed or served. In addition, the proof of service states that the motion was served on plaintiff's counsel electronically at cris.ibarra@ibarrapl.com. Counsel's electronic address of record and the address on a document filed on March 17, 2026 is cgibarra@aol.com

02:00 PM **LINE 7**

24-CIV-07448

XIAOCHAO ZHU VS. RECOLOGY, INC., ET AL

XIAOCHAO ZHU
RECOLOGY, INC.

KEVIN GOLSHANI
P. CHRISTIAN SCHELEY

Plaintiff's Motion to Compel Further Responses

TENTATIVE RULING:

For the reasons stated below, plaintiff Xiaochao Zhu's "Motion to Compel Further Responses and Production (RFP Set One, Nos. 5 & 12) (Incident Report); Request for In-Camera Review; Request for Sanctions," filed November 22, 2024, is **DENIED**.

A. Background

This case arises from a July 5, 2023 motor vehicle collision. Plaintiff's Complaint alleges that defendant McAlavey, while operating his employer's (defendant Recology, Inc.) tractor-trailer truck, and while in the course and scope of his employment with Recology, backed into plaintiff's vehicle, causing injury to plaintiff.

During discovery, plaintiff served Requests for Production of Documents (RFPs), Set One, Nos. 5 & 12, on defendant McAlavey, which asked McAlavey to produce all incident reports relating to the collision. McAlavey's responses acknowledged the existence of an internal incident report, but McAlavey withheld production of the report based on attorney-client privilege and work product.

Following an unsuccessful Informal Discovery Conference (IDC), plaintiff filed the present Motion, seeking to compel defendant McAlavey (1) to serve further responses to RFPs Nos. 5 & 12; and (2) to produce the incident report. Alternatively, in the event the court declines to compel production of the report, plaintiff asks the court to order an in-camera review of the incident report to assess the privilege claim. Plaintiff also seeks monetary sanctions against McAlavey and his counsel.

B. Governing Law

The party claiming privilege has the burden of showing that the evidence which it seeks to suppress is within the terms of the statute. (*D.I. Chadbourne, Inc. v. Superior Ct. of City & County of San Francisco* (1964) 60 Cal. 2d 723, 729 (*D.I. Chadbourne*).) Where the evidence establishes that a document sought in discovery is privileged as a matter of law, the court should not compel its production, nor conduct an in-camera inspection of the document. (*Ibid.*)

"When the employee of a defendant corporation is also a defendant in his own right (or is a person who may be charged with liability), his statement regarding the facts with which he or